

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
HAMLET CUESTA,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. KENNETH FLYNN OF
THE 43RD PCT, TAX # 959639 AND P.O. THOMAS
PEREZ OF THE 43RD PCT,

Defendant(s).
-----X

Index No.:
Date Purchased:
SUMMONS

Plaintiff designates Bronx
County as the place of trial.

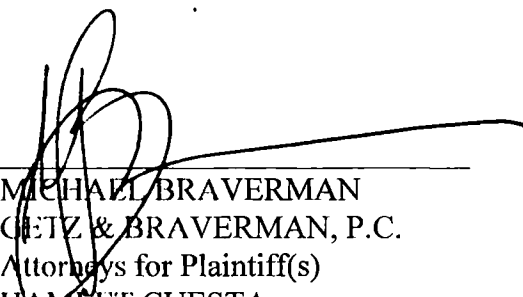
The basis of venue is:
Plaintiff's Residence

Plaintiff resides at:
140 Elgar Place #24H
Bronx, NY 10475
County of Bronx

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
December 19, 2017



MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)
HAMLET CUESTA
172 East 161st Street
Bronx, New York 10451
(718) 993-3000
Our File No. 9153

TO: THE CITY OF NEW YORK
Corporation Counsel
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007

P.O. KENNETH FLYNN OF THE 43RD PCT, TAX # 959639
900 Fteley Avenue
Bronx, New York 10473

P.O. THOMAS PEREZ OF THE 43RD PCT
900 Fteley Avenue
Bronx, New York 10473

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
HAMLET CUESTA,

Index No.:

Date Purchased:

Plaintiff(s),

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. KENNETH FLYNN OF
THE 43RD PCT, TAX # 959639 AND P.O. THOMAS
PEREZ OF THE 43RD PCT,

Defendant(s).

-----X

Plaintiff, by his attorneys GETZ & BRAVERMAN, P.C., complaining of the Defendant
respectfully alleges, upon information and belief:

1. That at the time of the commencement of this action, Plaintiff **HAMLET CUESTA** resided in the County of , City and State of New York.
2. Upon information and belief, that at all times hereinafter mentioned, **THE CITY OF NEW YORK**, (hereinafter referred to as “ CITY”, was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Upon information and belief, that at all times hereinafter mentioned, the defendant, **CITY**, its agents, servants, employees and/or licensees operated, maintained and controlled **NEW YORK CITY POLICE DEPARTMENT**, including all the police officers thereof.
4. Upon information and belief, and at all times hereinafter mentioned, **NEW YORK CITY POLICE DEPARTMENT**, its agents servants and employees supervised,

maintained and controlled its personnel.

5. Upon information and belief, at all times mentioned, Defendants **P.O. ENNETH FLYNN OF THE 43RD PCT, TAX # 959639 AND P.O. THOMAS PEREZ OF THE 43RD PCT**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
6. That a Notice of Claim was filed non pro tunc October 5, 2017 through an Order to Show Cause.
7. That more than 30 days have elapsed since the Notice of Claim and Intention to Sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.
8. That this action is commenced within one year and 90 days after the cause of action arose.

AS AND FOR THE FIRST CAUSE OF ACTION

9. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "8" with the same force and effect as if more fully set forth herein.
10. That on or about February 1, 2017, Plaintiff, **HAMLET CUESTA**, was wrongfully and falsely arrested, detained and imprisoned, without any right or grounds therefore.
11. That on or about February 1, 2017 November 12, 2015, the defendants acting within the scope and authority of their employment and office, wrongfully and falsely accused the plaintiff, **HAMLET CUESTA**, of the crimes of possession of criminal possession of a weapon and criminal possession of a firearm.

12. Upon information and belief, on or about February 1, 2017 and from that time until the dismissal of charges on or about July 17, 2017 which was a favorable termination for the accused by the Bronx County Criminal Court, Defendants **CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. ENNETH FLYNN OF THE 43RD PCT, TAX #959639 AND P.O. THOMAS PEREZ OF THE 43RD PCT**, deliberately and maliciously prosecuted Plaintiff **HAMLET CUESTA**, an innocent male without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.
13. That the said arrest and imprisonment of plaintiff, **HAMLET CUESTA** was caused by the said defendants, their agents, servants and employees, without legal process, without authority of the law and without any reasonable cause, or belief, that the plaintiff, **HAMLET CUESTA**, was in fact guilty of such crimes.
14. That the said arrest of the plaintiff herein was caused, allowed and permitted by the defendants herein, their agents, servants and/or employees, wrongfully, unlawfully, against the plaintiff's wishes, without probable or reasonable cause, and on the charges having been made.
15. That the defendant, their agents, servants and/or employees falsely arrested the plaintiff, compelled him to go with New York City Police officers pursuant to the instruction and will of the above named defendants, detained and imprisoned plaintiff at other diverse places and times, including, but not limited to, precinct in the station-house in the County of Bronx,

City and State of New York and Central Booking located in the Borough of Bronx, City and State of New York.

16. That the said defendants, their agents, servants and/or employees, acting within the scope of their authority and within the scope of their employment, caused the plaintiff herein to be arrested, detained and imprisoned, even though the defendants, their agents, servants and/or employees, had the opportunity to know, or should have known, that the matters hereinbefore alleged, wrongfully, unlawfully and without a sufficient charge having been made against the plaintiff, directed that the plaintiff be, arrested, searched, detained and placed in confinement at said locations.
17. That as a result of the aforesaid accusations made by the said defendants, their agents, servants and employees, acting under the scope of their office and within the scope of their authority, Plaintiff **HAMLET CUESTA** was falsely, publicly, wickedly and maliciously accused.
18. That the defendants, their agents, servants and/or employees, as set forth on the aforementioned date, time and place, intended to cause the arrest, detention and imprisonment of the plaintiff herein; plaintiff was conscious of the said arrest, detention, and imprisonment; and that said arrest, detention and imprisonment was not otherwise privileged.
19. That the aforesaid occurrence, false arrest and imprisonment of the plaintiff, was caused wholly and solely by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence of the part of the plaintiff herein.
20. That by reason of the aforesaid, the plaintiff was subjected to great indignities, humiliation and ridicule; was greatly injured in his credit and circumstances; was

prevented from performing and transacting his necessary affairs and business; and was incapacitated from his usual occupation.

21. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A SECOND CAUSE OF ACTION

22. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "21", with the same force and effect as if more fully and at length set forth herein.
23. That on or about the February 1, 2017, and prior and subsequent thereto, in the County of Bronx, City and State of New York, the defendants, acting within the scope and authority of their office and employment, carelessly, recklessly, maliciously and negligently caused, permitted, allowed, created and instigated the prosecution, and continuing prosecution, of the plaintiff with deliberate indifference.
24. That the plaintiff was wholly innocent, and was forced by the defendants, their agents, servants and/or employees, to submit to lengthy Court proceedings.
25. That on or about the 1st day of February, 2017, and prior and subsequent thereto, the defendants, their agents, servants and employees falsely and maliciously, without probable cause or provocation charged the plaintiff with various crimes, including felonies, misdemeanors and violations.
26. That the said prosecution, criminal charges and hearings were instituted and procured by the defendant, their agents, servants and/or employees in this action unlawfully,

maliciously and without reasonable or probable cause, with actual malice and was terminated in plaintiff's favor.

27. That the aforesaid occurrence, false arrest, imprisonment of the plaintiff and malicious prosecution, was caused solely and wholly by reason of the negligence of the defendant's, their agents, servants and/or employees without any negligence on the part of the plaintiff herein.
28. That by reason of the aforesaid, the plaintiff still suffers and, upon information and belief will continue to suffer, great indignities, humiliation and ridicule; was greatly injured to his credit and circumstances; was prevented from performing and transacting his necessary affairs and business; and was incapacitated from his usual occupations. Upon information and belief, the plaintiff has expended diverse sums of monies, in an effort to extricate himself from the imprisonment, indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements; and, upon information and belief, will expend further sums in that direction.
29. That by reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

30. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "29", with the same force and effect as if more fully set forth herein.

31. That the defendant, **NEW YORK CITY POLICE DEPARTMENT**, acting within the scope and authority of its office and employment, their agents, servants and/or employees recklessly, carelessly and negligently, performed their duties as police officers, in that they failed to use such care in the performance of their duties as reasonably prudent and careful police officers would have used under similar circumstances; in that they were reckless, careless, and negligent in the manner in which they declared the plaintiff in violation of the law; in that they caused, permitted and allowed the plaintiff to be, pursued, apprehended, detained, prosecuted and imprisoned in violation of his civil rights; in that they used the threat of imprisonment, and actually caused the imprisonment of the plaintiff, in that they made false accusations on or about February 1, 2017, in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.
32. That the defendant, **NEW YORK CITY POLICE DEPARTMENT**, acting within the scope and authority of its office and employment, their agents, servants and/or employees recklessly, carelessly and negligently, performed their duties as police officers, in that they failed to use such care in the performance of their duties as reasonably prudent and careful police officers would have used under similar circumstances; in that they caused, permitted and allowed the plaintiff to be, pursued, apprehended, detained, prosecuted and imprisoned in violation of his civil rights; in that they used the threat of imprisonment, and actually caused the imprisonment of the plaintiff, in that they made false accusations on or about February 1, 2017, in that the defendants, their agents, servants and/or employees failed to recognize that

plaintiff's right had been unjustly violated, and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

33. That the aforesaid occurrence, false arrest and imprisonment of the plaintiff, malicious prosecution, and negligent performance of duties, was caused solely and wholly by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence on the part of the plaintiff herein.
34. That by reason of the aforesaid, the plaintiff has been subjected to great indignities, humiliation and ridicule; was greatly injured in his credit and circumstances; was prevented from performing and transacting his necessary affairs and business. Upon information and belief plaintiff has expended diverse sums of monies and incurred debt, in an effort to extricate himself from the imprisonment, indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements.

AND AS FOR A FOURTH CAUSE OF ACTION

35. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "34" inclusive with the same force and effect as if more fully and at length set forth herein.
36. That the defendants, **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**, were careless, reckless and negligent in hiring and retaining its employees, in that the said defendants' employees lacked the experience, deportment and ability to be employed by the defendant; in that the defendants failed to exercise due care and caution in their hiring practices, and in particular, hiring the police officers involved who lacked the mental capacity and the ability to function as

employees of the aforementioned defendants; in that the defendant lacked the maturity, sensibility and intelligence to be employed by the defendants; in that the defendants knew of the lack of ability, experience, department and maturity of said defendants' employees when they hired them to be employees; and in that the defendants, their agents, servants and employees were otherwise careless, reckless and negligent.

37. That the defendants, **THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT**, were careless, reckless and negligent in hiring and retaining its employees, in that the said defendants' employees lacked the experience, savvy, knowledge, deportment and ability to be employed by the defendant, **NEW YORK CITY POLICE DEPARTMENT**; in that defendants failed to exercise due care and caution in their hiring practices, and in particular, hiring the police officers involved who lacked the mental capacity and the ability to function as employees of the aforementioned defendant; in that the defendants lacked the maturity, sensibility and intelligence to be employed by the defendant; in that the defendants knew of the lack of ability, experience, deportment and maturity of said defendants' employees when they hired them to be employees; and in that the defendants, their agents, servants and employees were otherwise careless, reckless and negligent.
38. That the aforesaid occurrence, the false arrest and imprisonment, malicious prosecution, negligence in performance of duties and negligence in hiring and retention and the resulting injuries to mind therefrom, were caused wholly and solely

by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiff.

39. That by reason of the aforesaid, the plaintiff has been subjected to indignities and humiliation was greatly injured in his credit and circumstances caused by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements, and upon information and belief, will expend further sums in that direction.
40. That by the reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A FIFTH CAUSE OF ACTION

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "40" inclusive with the same force and effect as if more fully and at length set forth herein.
42. That the defendants **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, acting within their scope and authority of their office and employment, in their capacity as a law enforcement office, was negligent and careless in the supervision, maintenance and control of police officers under their supervision and more particularly the supervision of the members of **NEW YORK CITY POLICE DEPARTMENT**, in that the defendants failed to exercise due care and caution in their supervision of same and in particular causing, permitting and allowing police officers under their supervision, and more particularly the defendants' agents, servants, employees and/or licensees, to act in a careless,

reckless and negligent manner without administering proper control, discipline and supervision thereby allowing police officers involved herein, to act in an unlawful and illegal manner; in causing, permitting and allowing persons within the employ of the **CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, search plaintiff, **HAMLET CUESTA**, in that the defendants knew, or should have known, of the lack of ability, experience, deportment and maturity of the said defendant police officers under their care, supervision and control and more particularly those police officers with a propensity to act in unlawful and illegal manner; and that said agents, servants and employees failed to properly investigate actions taken by police officers under their care, supervision and control, and were otherwise careless and negligent.

43. That the aforesaid occurrence, false arrest and imprisonment of the plaintiff, malicious prosecution, negligent performance of duties, negligent hiring and retention and negligent supervision and training, was caused solely wholly by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence on the part of the plaintiff herein.
44. That by reason of the aforesaid, the plaintiff has been subjected to great indignities, humiliation and ridicule, was greatly injure in his credit and circumstances; was prevented from performing and transacting his necessary affairs and business; and was prevented to perform his usual occupation. Upon information and belief, plaintiff has expended and incurred diverse sums of money in an effort to extricate himself from the indignities and humiliation imposed upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and

disbursements, and upon information and belief, will expend further sums in that direction.

45. That by the reason of the aforesaid, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A FIFTH CAUSE OF ACTION

46. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "45" inclusive with the same force and effect as if more fully and at length set forth herein.
47. That on or about March 17, 2015, in the County of Bronx, City and State of New York, at which time and place defendants **P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639** AND **P.O. THOMAS PEREZ OF THE 43RD PCT.**, were acting within the scope of their employment, authority and office as part of their regular and official employment as employees for defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT.**
48. As plaintiff was lawfully and properly enjoying his right as a citizen of the United States of America, said defendants' employees of New York City Police Department, **P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639** AND **P.O. THOMAS PEREZ OF THE 43RD PCT.**, who having the real and apparent ability to cause imminent harmful and offensive injury, and the power and authority to warrant for the arrest, detention, prosecution and imprisonment of the Plaintiff, did so threaten these acts upon the plaintiff, and did so cause the plaintiff herein to be arrested, detained, prosecuted and imprisoned, stripped and searched and in violation

of plaintiff's civil rights; in failing to recognize, detect and investigate same; in revoking the rights of the plaintiff herein; in failing to train, monitor, control and/or supervise their agents, servants and/or employees; and in prosecuting and continuing to prosecute the plaintiff.

49. That defendants, **P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639** AND **P.O. THOMAS PEREZ OF THE 43RD PCT.**, failed to properly and adequately ascertain that plaintiff was not in violation of the law and that plaintiff was detained, prosecuted and imprisoned for an extended period of time, depriving him of his rights and liberties as set forth in the Constitutions of the United States of America and of the State of New York, handcuffed him and threatened plaintiff with the possible use of firearms and weapons and the use of physical force; in that they continued to detain, prosecute and to imprison, the plaintiff without any conduct on the part of the plaintiff to so warrant, to wit: in that all the actions of the defendants, their agents, servants and/or employees, acting within scope and authority of their employment and office, committed with the intention to cause economic and mental injury to the plaintiff, arrested, detained, prosecuted and imprisoned the plaintiff without his consent; plaintiff was at all times conscious of his arrest, detainment, prosecution and imprisonment did not consent to the arrest, detainment, prosecution and imprisonment; and the arrest, detainment, prosecution and imprisonment was not otherwise privileged;

- b) the arrest, detention, prosecution and imprisonment were not justified by probable cause or other legal privilege; defendants, their agents, servants and employees, acting under the color of the statute, ordinances, regulations,

customs and usages of the he United States of America, the State of New York, City of New York and County of Bronx, within the scope of their employment and under the authority of their office as employees of The New York City Police Department for said state.

c) that the defendants, their agents, servants and/or employees, acting within the scope and authority of their office and employment, caused and unlawful arrest, detention, prosecution and imprisonment of the plaintiff thus depriving him of his freedom and civil rights as guaranteed by the Constitution of the United States of America when they in a willful, wanton, reckless, careless and negligent manner deprived the plaintiff of his due process, liberty and freedom without his consent and with the intention of causing harm and deprivation of his freedom and civil liberties, all without warrant, probable cause whatever; and,

d) . that the defendants, their agents, servants and employees failed to adequately and properly train, supervise, monitor, discipline or in any other way control the behavior and performance of police officers, their agents, servants and/or employees; that in their practices in the exercise as a police officer, their exercise of supervisory functions and their failure to enforce the laws of the United States of America, the State and City of New York is evidence of the careless and negligent lack of cautious regard for the rights of the public including the plaintiff herein; in that they exhibited a lack of that degree of due care which prudent and reasonable individuals, and reasonable police officers would show in the execution of, and functions of

the police officers; and,

e) the failure of the defendants, their agents, servants and employees to hire, train, supervise, discipline or in any other way control the defendants, in the exercise of their functions; in that their failure to enforce the laws of the United States of America, the State of New York and the City of New York were carried out carelessly and negligently and without regard for the consequences, so as to display a careless and negligent disregards for the dangers of harm and injury to the citizens of the United State of America, and the State and City of New York including, plaintiff; and,

f) due to the acts of the defendants, their agents, servants and employees, and the failure of the defendants, to control, discipline, train, monitor, supervise and/or properly hire personnel under their care, supervision and control, and the continued employment of same presents a clear and present danger to the citizens of the United States of a America and the City and State of New York; and,

g) That the said arrest, detention, prosecution and imprisonment were instituted and procured by the defendant, their agents, servants and employees, under the scope and authority of their office and employment in this action, unlawfully, carelessly and negligently and without any reasonable or probable cause whatsoever therefor. That the commencement and/or continuation of the revocation of freedom; hearing and criminal proceedings by the said defendants against the

plaintiff was without probable cause with actual malice and was ultimately terminated in favor of the plaintiff, and,

- h) that the defendants, their agents, servants and/or employees, acting within the scope and authority of their office and employment, permitted the use of policy, and or drafted policy that was violating the Constitutional rights of the above named plaintiff; and, in that each and all of the employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of Bronx, and under the authority of their office as police officers for said State, City and County.

50. Defendants, **P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639** AND **P.O. THOMAS PEREZ OF THE 43RD PCT.**, did not have probable cause to arrest, detain, prosecute and imprison the plaintiff before, after or at the time of this incident and deprive plaintiff of his Constitutional rights as set forth in the Constitutional rights as set forth in the Constitutions of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the United States of America.
51. Defendants, **P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639** AND **P.O. THOMAS PEREZ OF THE 43RD PCT.**, did not have probable cause to arrest, detain, prosecute and imprison plaintiff before, after or at the time of this incident, and failed to properly safeguard the plaintiff's Constitutional rights as set forth in the

Constitution of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the State of New York.

52. As a direct result of the aforesaid actions and conduct of the part of the said defendants, **P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639 AND P.O. THOMAS PEREZ OF THE 43RD PCT.**, plaintiff was falsely arrested, detained, prosecuted and imprisoned and was compelled to be arraigned and appear in the Criminal Court system of the City and State of New York, County of Bronx and to undergo a criminal proceeding(s).
53. That at all times hereinafter mentioned, the defendants, **P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639 AND P.O. THOMAS PEREZ OF THE 43RD PCT.**, were employed in their respective capacities by the New York City Police Department and were acting within the scope and authority of their office and employment under the color of their official capacity and their acts were performed under the color of the policies statutes, ordinances, rules and regulations of the New York City Police Department.
54. That at all times hereinafter mentioned, defendants, **P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639 AND P.O. THOMAS PEREZ OF THE 43RD PCT.**, were acting pursuant to orders and directives from defendants, **THE CITY OF NEW YORK AND NEW YOR CITY POLICE DEPARTMENT** and acting within the scope and authority of his/their employment and office.
55. That at all times hereinafter mentioned, defendants, **, P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639 AND P.O. THOMAS PEREZ OF THE 43RD PCT.**, were acting pursuant to orders and directives from defendants, **THE CITY**

OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT within the scope and authority of their employment and office.

56. That at all times hereinafter mentioned, defendants, **P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639** AND **P.O. THOMAS PEREZ OF THE 43RD PCT.**, were acting pursuant to, and within the scope and authority of their employment and office.
57. That during all times hereinafter mentioned, the defendants, **P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639** AND **P.O. THOMAS PEREZ OF THE 43RD PCT.**, and each of them separately, and in concert, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of New York City Police Department and the defendants herein, separately and in concert, engaged in the reckless, careless and negligent conduct herein mentioned to the injury and detriment of the plaintiff and deprived plaintiff by the First and Fourteenth Amendments to the Constitution of the State of New York and the laws of the City and State of New York.
58. The defendants, **P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639** AND **P.O. THOMAS PEREZ OF THE 43RD PCT.**, were employed by the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, acting under color of law, have subjected plaintiff and other persons to a pattern of conduct consisting of false arrest, detention, prosecution and imprisonment and that said defendants, **, P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639** AND **P.O. THOMAS PEREZ OF THE 43RD PCT.** did not confer due process upon the plaintiff herein, and in denied the rights, privileges and

immunities guaranteed plaintiff and other citizens of the United States of America by the Constitution of the United States of America.

59. This systematic pattern of conduct consists of a large number of individual acts of violations of plaintiff's civil rights, and other citizens, by employees of **NEW YORK CITY POLICE DEPARTMENT** and more particularly the defendants, **P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639** AND **P.O. THOMAS PEREZ OF THE 43RD PCT.**, in acting in concert with persons unknown to the plaintiff and under color of law, and said acts, while carried out under color of law, within the scope and authority of their office and employment, having no justification or excuse in law and are instead reckless, careless and negligent, unrelated to any activity in which police officers may properly, appropriately and legally engage in the course of protecting persons or property or ensuring civil order.
60. Although defendants **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, knew or should have known of the fact that this pattern of conduct was carried out by, **P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639** AND **P.O. THOMAS PEREZ OF THE 43RD PCT.**, have not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other Citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.
61. The conduct of the defendants, **P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639** AND **P.O. THOMAS PEREZ OF THE 43RD PCT.**, deprived

plaintiff of the following rights, privileges and immunities secured to them the Constitution of the United States and of the State of New York:

- a) The right of plaintiff to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments of the Constitution of the United States; and
- b) The right of plaintiff no to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the fourteenth Amendment to the Constitution of the United States.

62. That by reason of the aforesaid negligence, false arrest and false imprisonment, malicious prosecution, negligent performance of duties, negligent hiring and retention, negligent training and supervision, and violation of civil rights caused by the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639 AND P.O. THOMAS PEREZ OF THE 43RD PCT.,** , acting within the scope and authority of their office and employment, who conspired together to enter into a nefarious scheme to wrongfully deprive the plaintiff, and compel him to abandon his rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639 AND P.O. THOMAS PEREZ OF THE 43RD PCT.,** , violated 42 U.S.C. Sec. 1983 in that the defendants, **THE CITY OF NEW YORK AND NEW**

YORK CITY POLICE DEPARTMENT, P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639 AND P.O. THOMAS PEREZ OF THE 43RD PCT., acted as persons who under color of any statute, ordinances, regulation, custom or usage of the City of New York and the State of New York, subjected or caused to be subjected, citizens of the United States of America or other persons within the jurisdiction, particularly the plaintiff thereof to be deprived of his rights, privileges and immunities received by the Constitution and laws of the United States of America and of the State of New York; was subjected to great indignities and humiliation, and pain and distress of mind and was held up to scorn and ridicule, injured his character and reputation, was prevented from attending his usual business and vocation and was injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging plaintiff.

63. That the aforesaid occurrence, false arrest and imprisonment of the plaintiff, malicious prosecution, negligent performance of duties, negligent hiring and retention, negligent supervision and training and violation of civil rights, was caused solely and wholly by reason of the negligence of the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, P.O. KENNETH FLYNN OF THE 43RD PCT, TAX #: 959639 AND P.O. THOMAS PEREZ OF THE 43RD PCT.,** without any negligence on the part of the plaintiff herein.

64. That by reason of the aforesaid, the plaintiff has been subjected to great indignities, humiliation and ridicule; was greatly injured in his credit and circumstances; was prevented from performing and transacting his necessary affairs and business; and he

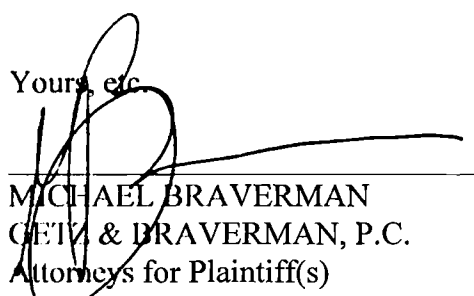
was incapacitated from his usual occupation. Upon information and belief, plaintiff has expended diverse sums of monies, and incurred debt, in an effort to extricate himself from the imprisonment, indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursement and, upon information and belief, will expend further sums in that direction.

65. That by reason of the aforesaid, the plaintiff requests the following relief:
- a) Punitive damages in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.
 - b) Compensatory damages in the amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action. .

Dated: Bronx, New York
December 19, 2016

Yours, etc.



MICHAEL BRAVERMAN
CETV & BRAVERMAN, P.C.
Attorneys for Plaintiff(s)
RENE RAMIREZ
172 East 161st Street
Bronx, New York 10451
(718) 993-3000

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK

SS:

COUNTY OF BRONX

Hamlet Cuesta

, being duly sworn, says:

Summons and Complaint

I am a Plaintiff in the action herein: I have read the annexed
and know the contents thereof, and the same are true to my knowledge, except those matters therein
which are stated to be alleged upon information and belief, and as to those matters I believe them
to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts,
records, and other pertinent information contained in my personal files.

DATED: Bronx, New York

Dec 19, 2017X Hamlet R. Cuesta

Sworn to before me this

19th day of Dec, 2017MICHAEL M. BRAVERMAN
NOTARY PUBLIC, STATE OF NEW YORKBRONX COUNTY 02870336120
Notary PublicCertificate Filed in
Bronx County
Commission Expires 12-27-2021

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

HAMLET CUESTA,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, P.O. KENNETH FLYNN OF THE 43RD
PCT, TAX # 959369 AND P.O. THOMAS PEREZ
OF THE 43RD PCT,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

GETZ & BRAVERMAN, P.C.
Attorneys for HAMLET CUESTA
172 East 161st Street
Bronx, New York 10451
(718) 993-3000

TO: